

Multiple Choice (10 marks)

1. Under common law principles, which of the following is not correct regarding the duty owed by a possessor of land towards an undiscovered trespasser?
 - (a) No duty for artificial conditions.
 - (b) A duty for natural conditions.
 - (c) No duty for natural conditions.
 - (d) No duty for active operations.
2. Which of the following criticisms of Llewellyn's distinction between the grand and formal styles of legal reasoning is the most compelling?
 - (a) There is no distinction between the two forms of legal reasoning.
 - (b) Judges are appointed to interpret the law, not to make it.
 - (c) It is misleading to pigeon-hole judges in this way.
 - (d) Judicial reasoning is always formal.
3. Who said that "Jurisprudence is the eye of law"
 - (a) Savigny
 - (b) Kelsen
 - (c) Austin
 - (d) Hart
 - (e) Bentham
4. Which of the following most accurately describes Hart's response to Fuller's argument concerning the invalidity of Nazi law?
 - (a) The Nazi law in question was validly enacted.
 - (b) The Nazi rule of recognition was unclear.
 - (c) Hart agreed with Fuller's argument.
 - (d) The court misunderstood the legislation.
 - (e) Fuller misconstrued the purpose of the law.
5. Point out the most accurate response : According to Austin, law has the following attributes :
 - (a) Command, sovereign and legal remedy
 - (b) Command, sovereign and authority

- (c) Command, sovereign and legal enforcement
- (d) Command, sovereign and legal responsibility
- (e) Command, sovereign and obedience by subject

True / False (10 marks)

Answer True or False

- 6. True or False: The cold pursuit doctrine is not recognized as a valid exception to the warrant requirement for searches.
- 7. True or False: Contracts for crops and timber to be severed from property are classified under the Uniform Commercial Code (UCC).
- 8. True or False: The rule of recognition only imposes duties on judges without conferring any power to them.
- 9. True or False: The unlawful homicide committed by a minister abroad is classified as a public act (*jure imperii*) and is shielded by immunity.
- 10. True or False: Termination of a parent's custody rights and welfare benefits can occur with immediate termination without any notice.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

- 11. Discuss the implications of Mary's will on the distribution of her estate, focusing on the legal principles involved in the division between her child and the Salvation Army.
- 12. Discuss the legal implications and constitutional considerations surrounding bid retraction in auctions, particularly in the context of asset liquidation, as illustrated by Fernandez's situation.

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